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Preventive law for families and business owners

THE HOME LINE

When There Isn't Much Time

Before a terminal illness takes someone

What can only be done now, what can safely wait, and how to spend the time you have.

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This is for right now.

Someone you love has been given a short calendar, and you are being asked to do paperwork. That is an unfair thing to be asked, and we are sorry you are the one reading this.

Here is the only reason it cannot wait. A handful of things can only be done while a person is able to understand and sign their name. Not after. Not with a court's help later. Those doors close, and they do not reopen.

Everything else on this sheet can wait weeks or months, and most of it should. The whole purpose of this page is to separate the two, so you spend the time you have on the things that only you two can do together.

The one thing to do today

Call an estate planning attorney and say this sentence: my [husband, wife, mother, father] has a terminal diagnosis, we have no documents, and I need to know what has to be signed while they still can.

That sentence moves you to the front of the line. Most firms, including ours, will treat it as urgent and many will come to you. Do not wait for a better day, and do not wait for a better week, because the ability to sign can change faster than anyone expects.

Jeppson Law: eric@jeppsonlaw.com. We practice in California and Utah. If you are somewhere else, call any local estate planning attorney today and use the same sentence.

Two more things, in the next day or two

- ☐ **Start a voice memo on your phone and keep it running during ordinary conversations.**
  You do not have to organize anything. You just have to capture it. Transcription can happen later, by someone else.

- ☐ **Go to the bank together, in person, this week.**
  Bring both IDs. Ask to be added to the accounts and to the safe deposit box. Ask what you would be able to do tomorrow on your own. Write down the answer.

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START HERE

What needs a signature

WHY THIS MATTERS Each one needs a signature while your person can still give it. Without them, your family may need a judge's permission to pay bills or make medical decisions.

Take this list to the attorney. You do not need to understand it. Hand it over and let them tell you which items apply and in what order.

- ☐ **A will**
  If there is no will, the state writes one for you, and it will not match what either of you wanted.
- ☐ **A revocable living trust, and moving the house into it**
  A trust signed but never funded does very little. Ask your attorney to handle the deed at the same time.
- ☐ **A durable financial power of attorney**
  This lets you act for them while they are living but can no longer manage things. Without it you may need a court.
- ☐ **An advance health care directive and a HIPAA authorization**
  So you can make medical decisions and so the hospital can talk to you.
- ☐ **Updated beneficiary designations on retirement accounts and life insurance**
  These override the will, and are often the fastest thing to fix, sometimes in one phone call.
- ☐ **Your name added to the bank and brokerage accounts, and to the signature card**
  Being on the statement is not the same as having authority. Ask the banker what you could do tomorrow on your own.
- ☐ **Your name added to the safe deposit box, if you have one, in person at the bank**
  A box in one name can be restricted after a death, which is a problem if the will is inside it.
- ☐ **Your name added to the phone carrier account as an authorized user**
  That phone receives the security codes for nearly every account you will need.
- ☐ **Deeds and vehicle titles reviewed**
  Ask whether a transfer-on-death deed is available where you live. In some states it is fast and inexpensive.
- ☐ **Business documents: a buy-sell agreement, a succession plan, or a sale**
  If there is a business, this is the largest single item on the list and the one most likely to be left unfinished.

TWO THINGS WORTH KNOWING

A terminal diagnosis does not by itself mean someone cannot sign. But illness and medication affect it week to week, so go early rather than assume.

A good attorney documents that they understood what they signed, which protects you if anyone questions it later. That is why not to do this with downloaded forms.

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AT THE SAME TIME

What only they know

WHY THIS MATTERS None of this is written down anywhere. It lives in one person's memory, and once it is gone, finding it can take months or never happen. The whole job is to ask while you can ask.

This part does not need a lawyer and does not need to be tidy. Sit down with a phone recording and ask. Twenty minutes at a time is plenty, and you can do it over many days.

- ☐ **Every password, and the passcode to their phone and computer**
  Do not try to organize them. Just capture them. The password manager can come later.
- ☐ **Which company holds each insurance policy, and the agent's name**
  People routinely know a policy exists and have no idea who to call to collect it.
- ☐ **Who to call first, and what each advisor handles**
  Attorney, CPA, financial advisor, insurance agent, banker, business partner.
- ☐ **What the business is worth, who might buy it, and who could run it on Monday**
  Also: what it owes, who owes it money, and which customers matter most.
- ☐ **Which bills are on autopay, and which account or card pays them**
  This is the one that quietly causes damage in month two when a card gets closed.
- ☐ **Every debt, and anything they personally guaranteed**
  Personal guarantees follow the family, not the company. You need to know they exist.
- ☐ **Where the original documents are, physically**
  Which drawer, which safe, which office, which bank.
- ☐ **Anything they know that nobody else knows**
  Ask it that way, exactly. It is a surprisingly productive question.

ONE MORE THING TO RECORD

While the recorder is already running, ask the things that have nothing to do with money. How you two met. What they are proudest of. What they want the grandchildren to know.

Families who do this almost never regret it, and the practical recordings become much easier to make once the conversation is not only about accounts.

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PERMISSION

What can wait

None of this has to happen in the next few weeks. Reading the list is allowed to be a relief.

- ☐ **Probate, and retitling the house**
- ☐ **Closing accounts, cards and subscriptions**
- ☐ **Social Security survivor benefits**
- ☐ **Filing the life insurance claim**
- ☐ **Sorting the paperwork, the closets, the garage**
- ☐ **Deciding where you will live**
- ☐ **Thank-you notes**

People will offer to help with these. Let them. None of it requires you specifically, and none of it gets worse by sitting for a month.

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If you have never paid a bill

A lot of capable people are in this position, usually because one person was good at it and it was simpler that way. It is far more common than anyone admits out loud, and it is not something to be embarrassed about now.

You also do not have to learn personal finance this month. You need three things: (1) what comes in, (2) what goes out, and (3) who to call. That is a much smaller job than it feels like.

- ☐ **Sit down together and pay one month of bills, with you at the keyboard.**
  One hour. They talk, you click. You will learn more in that hour than in a year of reading.
- ☐ **Write down the five bills that cause real trouble if they are missed.**
  Usually the mortgage, the utilities, the insurance premiums, the phone, and anything securing a loan.
- ☐ **Capture the logins as you go.**
  You are already in each account. This is the easiest time you will ever have collecting them.
- ☐ **Ask one person you trust to be your second set of eyes for the first year.**
  A grown child, a sibling, a friend who is good with this. Not to take over, just so you are not deciding alone.

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You are doing the right thing.

Asking these questions can feel like a betrayal, as though planning for it means giving up on someone. It is the opposite. Every item on these pages is something they would want handled, and most people in their position are relieved to be asked, because they have been carrying the worry alone.

There is a version of this where they get to help. Where they hand it to you rather than leave it behind. That version is available right now, and it is worth the awkwardness of starting the conversation.

WHEN YOU ARE READY FOR THE REST

There is a longer version of this work for households with more time, called the Clean Legal Bill of Health: Home Edition. It is forty walkthroughs across six areas, sorted so you can start anywhere, and it will be there when you want it. Not now.

If there is a family business, the Clean Legal Bill of Health for business does the same work for the company. You can start with a free checkup at jeppsonlaw.com.

For now: make the call, start the recorder, and go to the bank. Those three things are most of what today requires.

This is educational material, not legal advice, and reading it does not create an attorney-client relationship. Estate, property and probate rules differ by state. Jeppson Law practices in California and Utah. Wherever you live, talk to a licensed estate planning attorney in your state before signing anything.